To:	Samantha N. Skains-Menchaca(CharlotteTM@bradley.com)
Subject:	U.S. Trademark Application Serial No. 99174501 - DESK-DROP - - 301538-401105
Sent:	September 30, 2025 05:27:10 PM EDT
Sent As:	tmng.notices@uspto.gov

Attachments

screencapture-www-merriam-webster-com-dictionary-drop-17592670457811
screencapture-www-merriam-webster-com-dictionary-desk-17592671389401

United States Patent and Trademark Office (USPTO)
Office Action (Official Letter) About Applicant's Trademark Application

U.S. Application Serial No. 99174501

Mark: DESK-DROP

Correspondence Address:
Samantha N. Skains-Menchaca
Bradley Arant Boult Cummings LLP
214 North Tryon Street, Suite 3700
Charlotte NC 28202
United States

Applicant: Elior, Inc.

Reference/Docket No. 301538-401105

Correspondence Email Address: CharlotteTM@bradley.com

NONFINAL OFFICE ACTION

Response deadline. File a response to this nonfinal Office action within three months of the "Issue date" below to avoid abandonment of the application. Review the Office action and respond using one of the links to the appropriate electronic forms in the "How to respond" section below.

Request an extension. For a fee, applicant may request one three-month extension of the response deadline prior to filing a response. The request must be filed within three months of the "Issue date" below. If the extension request is granted, the USPTO must receive applicant's response to this letter within six months of the "Issue date" to avoid abandonment of the application.

Issue date: September 30, 2025

The referenced application has been reviewed by the assigned trademark examining attorney. Applicant must respond timely and completely to the issue(s) below. 15 U.S.C. §1062(b); 37 C.F.R.

§§2.62(a), 2.65(a); TMEP §§711, 718.03.

SUMMARY OF ISSUES:

- Section 2(e)(1) Merely Descriptive Refusal

Office Records Searched

The trademark examining attorney searched the USPTO database of registered and pending marks and found no conflicting marks that would bar registration under Trademark Act Section 2(d). 15 U.S.C. §1052(d); TMEP §704.02.

Section 2(e)(1) Refusal – Mark Is Merely Descriptive

Registration is refused because the applied-for mark merely describes a feature/characteristic of applicant's goods and/or services. Trademark Act Section 2(e)(1), 15 U.S.C. §1052(e)(1); *see* TMEP §§1209.01(b), 1209.03 *et seq.*

A mark is merely descriptive if it describes an ingredient, quality, characteristic, function, feature, purpose, or use of an applicant's goods and/or services. TMEP §1209.01(b); *see, e.g.*, *In re TriVita, Inc.*, 783 F.3d 872, 874, 114 USPQ2d 1574, 1575 (Fed. Cir. 2015) (quoting *In re Oppedahl& Larson LLP*, 373 F.3d 1171, 1173, 71 USPQ2d 1370, 1371 (Fed. Cir. 2004)); *In re Steelbuilding.com*, 415 F.3d 1293, 1297, 75 USPQ2d 1420, 1421 (Fed. Cir. 2005) (citing *Estate of P.D. Beckwith, Inc. v. Comm'r of Patents*, 252 U.S. 538, 543 (1920)).

Generally, if the individual components of a mark retain their descriptive meaning in relation to the goods and/or services, the combination results in a composite mark that is itself descriptive and not registrable. *In re Fat Boys Water Sports LLC*, 118 USPQ2d 1511, 1516 (TTAB 2016) (citing *In re Tower Tech, Inc.*, 64 USPQ2d 1314, 1317-18 (TTAB 2002)); TMEP §1209.03(d); *see, e.g.*, *In re Cannon Safe, Inc.*, 116 USPQ2d 1348, 1351 (TTAB 2015) (holding SMART SERIES merely descriptive of metal gun safes); *In re King Koil Licensing Co.*, 79 USPQ2d 1048, 1052 (TTAB 2006) (holding THE BREATHABLE MATTRESS merely descriptive of beds, mattresses, box springs, and pillows).

Only where the combination of descriptive terms creates a unitary mark with a unique, incongruous, or otherwise nondescriptive meaning in relation to the goods and/or services is the combined mark registrable. *See In re Colonial Stores, Inc.*, 394 F.2d 549, 551, 157 USPQ 382, 384 (C.C.P.A. 1968); *In re Positec Grp. Ltd.*, 108 USPQ2d 1161, 1162-63 (TTAB 2013).

In this case, both the individual components and the composite result are descriptive of applicant's goods and/or services and do not create a unique, incongruous, or nondescriptive meaning in relation to the goods and/or services.

Specifically, the term "DESK" means "a table, counter, stand, or booth at which a person works", and the term "DROP" means "to deposit or deliver during a usually brief stop". See attached dictionary definitions from www.merriam-webster.com. When combined, no new commercial impression is

created. Instead, the mark immediately indicates to consumers that the applicant's services features and/or is offered in connection with delivery to the tables, counters, stands or booths at which people work. See applicant's identification of services, which specifically includes "Providing of food and drink via cafe and restaurants and made to order *for office delivery*". (Emphasis added).

For the foregoing reasons, the proposed mark, DESK-DROP, is refused registration because it is merely descriptive of the applicant's goods and/or services under Trademark Act Section 2(e)(1).

Supplemental Register - Advisory

Although amending to the Supplemental Register could overcome the above refusal, please note that a mark in an application under Trademark Act Section 1(b) is not eligible for registration on the Supplemental Register until an acceptable amendment to allege use under 37 C.F.R. §2.76 has been filed. 37 C.F.R. §§2.47(d), 2.75(b); TMEP §§815.02, 1102.03. When a Section 1(b) application is successfully amended to the Supplemental Register, the application effective filing date will be the date applicant met the minimum filing requirements under 37 C.F.R. §2.76(c) for the amendment to allege use. TMEP §§816.02, 1102.03; *see* 37 C.F.R. §2.75(b).

Although registration on the Supplemental Register does not afford all the benefits of registration on the Principal Register, it does provide the following advantages to the registrant:

(1) Use of the registration symbol ® with the registered mark in connection with the designated goods and/or services, which provides public notice of the registration and potentially deters third parties from using confusingly similar marks.

(2) Inclusion of the registered mark in the USPTO's database of registered and pending marks, which will (a) make it easier for third parties to find it in trademark search reports, (b) provide public notice of the registration, and thus (c) potentially deter third parties from using confusingly similar marks.

(3) Use of the registration by a USPTO trademark examining attorney as a bar to registering confusingly similar marks in applications filed by third parties.

(4) Use of the registration as a basis to bring suit for trademark infringement in federal court, which, although more costly than state court, means judges with more trademark experience, often faster adjudications, and the opportunity to seek an injunction, actual damages, and attorneys' fees and costs.

(5) Use of the registration as a filing basis for a trademark application for registration in certain foreign countries, in accordance with international treaties.

See 15 U.S.C. §§1052(d), 1091, 1094; J. Thomas McCarthy, *McCarthy on Trademarks & Unfair Competition* §§19:33, 19:37 (rev. 4th ed. Supp. 2017).

Although applicant's mark has been refused registration, applicant may respond to the refusal(s) by submitting evidence and arguments in support of registration.

Responding to this Office Action

How to respond. File a **response form to this nonfinal Office action** or file a **request form for an extension of time to file a response**.

Telephone/email communication for questions. Please call or email the assigned trademark examining attorney with questions about this Office action. However, please note that the USPTO does not accept emails as responses to Office actions; however, emails can be used for informal communications and are included in the application record. *See* 37 C.F.R. §§2.62(c), 2.191; TMEP §§304.01-.02, 709.04-.05.

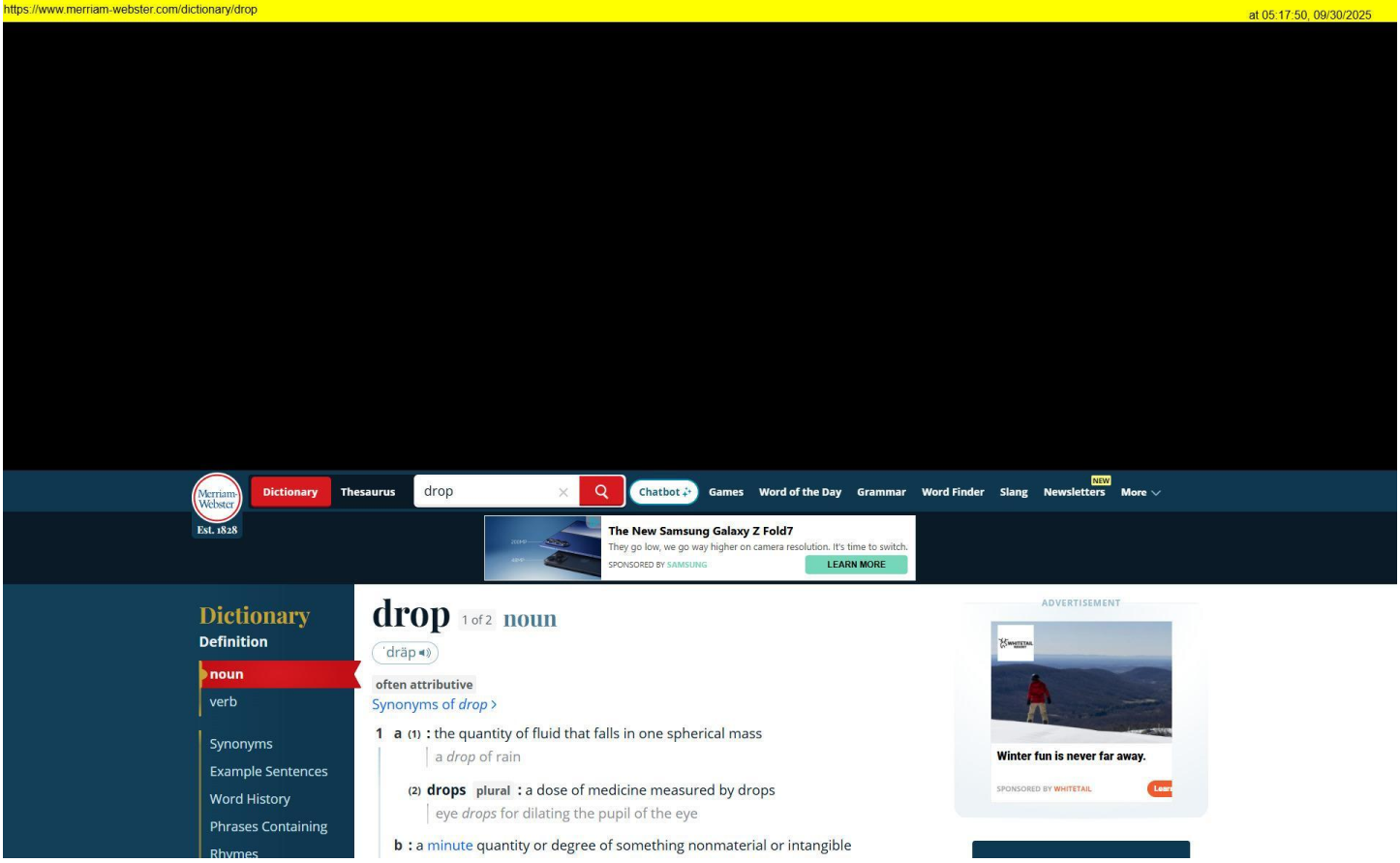
/Meghan Reinhart/
Meghan Reinhart
Trademark Examining Attorney
Law Office 108
(571) 272-2943
meghan.reinhart@USPTO.GOV

RESPONSE GUIDANCE

- **Missing the deadline for responding to this letter will cause the application to abandon.** A response or extension request must be received by the USPTO before 11:59 p.m. **Eastern Time** of the last day of the response deadline. Trademark Electronic Application System (TEAS) system availability could affect an applicant's ability to timely respond. For help resolving technical issues with TEAS, email TEAS@uspto.gov.

- **Responses signed by an unauthorized party** are not accepted and can **cause the application to abandon.** If applicant does not have an attorney, the response must be signed by the individual applicant, all joint applicants, or someone with legal authority to bind a juristic applicant. If applicant has an attorney, the response must be signed by the attorney.

- If needed, **find contact information for the supervisor** of the office or unit listed in the signature block.



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noun
verb
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Phrases Containing
Rhymes

drop 1 of 2 noun

ˈdräp

often attributive

Synonyms of *drop* ›

1 a (1) : the quantity of fluid that falls in one spherical mass
a drop of rain

(2) **drops** plural : a dose of medicine measured by drops
eye drops for dilating the pupil of the eye

b : a minute quantity or degree of something nonmaterial or intangible

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not a *drop* of meanness in her

c : a small quantity of drink
hasn't touched a *drop* of alcohol in three years

d : the smallest practical unit of liquid measure

2 : something that resembles a liquid drop: such as

a : a pendent ornament attached to a piece of jewelry
also **:** an earring with such a pendant

b : a small globular cookie or candy
sucking on lemon *drops*

3 [drop entry 2]

a : the act or an instance of dropping **: FALL**
a sudden, short *drop* in an elevator

b : a small globular cookie or candy
sucking on lemon *drops*

3 [drop entry 2]

a : the act or an instance of dropping **: FALL**
a sudden, short *drop* in an elevator

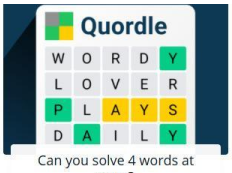
b : a decline in quantity or quality
His income took a sudden *drop*.
a *drop* in demand

c : a descent by parachute
also **:** the people or equipment dropped by parachute
expecting another *drop* this week

d : a place or central depository to which something (such as mail, money, or stolen property) is brought for distribution or transmission
left the package at the *drop*

also **:** the act of depositing something at such a place
made the *drop*

4 a : the distance from a higher to a lower level or through which something drops
It's a twenty-foot *drop* from the top of the fence.



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WORD OF THE DAY
impetuous
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a steep *drop*

b **electrical engineering** : a decrease in electric potential (see POTENTIAL entry 2 sense 2b)

5 : a slot into which something is to be dropped

6 [drop entry 2] : something that drops, hangs, or falls: such as

a : a movable plate that covers the keyhole of a lock

b : an unframed piece of cloth stage scenery

also : **DROP CURTAIN**

c : a hinged platform on a gallows

d : a fallen fruit

7 : the advantage of having an opponent covered (see COVER entry 1 sense 1b(2)) with a firearm

broadly : **ADVANTAGE, SUPERIORITY** → usually used in the phrase *get the drop on*

waiting to get the *drop* on me

8 : a move back from the line of scrimmage (as in preparation for making a forward pass)

a quick *drop*

drop 2 of 2 verb

dropped; dropping; drops

intransitive verb

1 : to fall in drops

2 **a** (1) : to fall (see FALL entry 1 sense 1a) unexpectedly or suddenly

The book *dropped* from her hand.

(2) : to descend (see DESCEND sense 1) from one line or level to another

the land *drops* to sea level

b : to fall in a state of collapse (see COLLAPSE entry 2 sense 1b) or death

dropped from exhaustion

c **of a playing card** : to become played by reason of the obligation to follow suit

d : to fall or roll into a hole or basket

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3 : to enter or pass as if without conscious effort of will (see WILL entry 2 sense 4a) into some state, condition, or activity

> *dropped* into sleep

4 **a** : to cease to be of concern : **LAPSE**

> let the matter *drop*

b : to pass from view or notice : **DISAPPEAR** → often used with *out*

> *drop* out of sight

c : to become less

> production *dropped*

→ often used with *off*

5 **nautical** : to move with a favoring wind or current → usually used with *down*

> We *dropped* down the harbor.

6 **informal** : to be released to the public

> His latest solo album *dropped* in August ...
> – Ed Rampell

> The second Podcast *drops* Nov. 14 and can be downloaded free ...
> – Langston Wertz, Jr.

> There's also something to be said for jumping on a subscription for a month or two, say when a big, new game *drops*.
> – Adam Rosenberg

transitive verb

1 : to let fall : cause to fall

> *dropped* the ball

> *dropping* bombs on the city

2 **a** : **GIVE UP sense 2, ABANDON**

> *drop* an idea

> *drop* the charges

b : **DISCONTINUE**

> *dropped* what she was doing

c : to break off an association or connection with : **DISMISS**

drop her old friends

was *dropped* by his sponsors

students who *dropped* the class

3 **a** : to utter or mention in a casual way

drop a suggestion

drop names

b : **WRITE**

drop us a line soon

4 **a** : to lower or cause to descend from one level or position to another

drop the hem two inches

drop the water level

b : to cause to lessen or decrease : **REDUCE**

dropped his speed

5 **of an animal** : to give birth to

6 **a** : **LOSE**

dropped three games

dropped $50 in a poker game

b : **SPEND**

drop $20 for lunch

c : to get rid of

dropped 20 pounds

7 **a** : to bring down with a shot or a blow

dropped the buck with one shot

dropping the world champion in the ring

b **card games** : to cause a cardholder to unwillingly play (a high card)

dropped her ace

c : to toss or roll into a hole or basket

drop a putt

8 **a** : to deposit or deliver during a usually brief stop → usually used with *off*

drop the kids off at school

b : **AIR-DROP**

drop the supplies to the medical team

9 : to cause (the voice) to be less loud

10 **a** linguistics : to leave (a letter representing a speech sound) unsounded

drop the *g* in *running*

b : to leave out in writing : **OMIT**

accidentally *dropped* a whole line

11 : to draw from an external point

drop a perpendicular to the line

12 : to take (a drug) orally : **SWALLOW**

drop acid

13 computers : to place (an item on a computer screen) in one location in a graphical user interface after dragging it from another

Move the video to the desired location and release the mouse button to *drop* the file ...
– *Techsling*

... you get a handy graphical representation of all your tasks and can even ***drag and drop*** them from one list to another ...
– Jack Wallen

droppable ˈdrä-pə-bəl adjective

Phrases

at the drop of a hat

: as soon as the slightest provocation is given : **IMMEDIATELY**

loses her temper *at the drop of a hat*

drop in the bucket

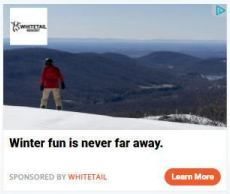
: a part so small as to be negligible

drop a dime
: to inform authorities (such as the police) of another's wrongdoing

drop behind
: to fail to keep up

drop the ball
: to make a mistake especially by failing to take timely, effective, or proper action

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Synonyms

Noun

bead drip droplet glob

Verb

throw

See All Synonyms & Antonyms in Thesaurus ›

Examples of *drop* in a Sentence

Noun

He squeezed the bottle until a few ***drops*** came out.

She doesn't have a single ***drop*** of selfishness in her.

The poet wrings the last ***drop*** of meaning from every word.

See More

Recent Examples on the Web

Examples are automatically compiled from online sources to show current usage. Opinions expressed in the examples do not represent those of Merriam-Webster or its editors. Send us feedback.

Noun

Here's a super-budget Dell monitor with an additional $20 price ***drop*** for your consideration.
– *PC Magazine*, 29 Sep. 2025

The main reason for this ***drop***, according to Stephanie Guichard, senior economist of global indicators at the Conference Board, is consumers' appraisal of current job availability, which declined for the eight consecutive month.
– Eleanor Pringle, *Fortune*, 29 Sep. 2025

Verb

And while temperatures continue to ***drop***, the breezy ripped jeans have also found a fan in Rihanna, who's already been spotted wearing the same pair twice.
– Anna Cafolla, *Vogue*, 24 Sep. 2025

Birth rates also ***dropped*** among younger women aged 15 to 34, while remaining unchanged for older age groups.
– Giulia Carbonaro, *MSNBC Newsweek*, 24 Sep. 2025

See All Example Sentences for *drop* ›

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Word History

Etymology

Noun and Verb

Middle English, from Old English *dropa*; akin to Old High German *tropfo* drop

First Known Use

Noun

before the 12th century, in the meaning defined at sense 1a(1)

Verb

before the 12th century, in the meaning defined at intransitive sense 1

Time Traveler

The first known use of *drop* was before the 12th century

See more words from the same century

Phrases Containing *drop*

abandon/drop all pretense at
a drop in the ocean
cough drop
drag and drop
drop a bomb
drop a bombshell

drop a brick | drop acid | drop a clanger
drop a deuce | drop a dime | drop a hint

See More

Rhymes for *drop*

bop | chop | cop
crop | flop | fop
hop | knop | lop
mop | op | plop

See All Rhymes for *drop* >

Browse Nearby Words

droopy | **drop** | drop a bomb

See All Nearby Words >

Cite this Entry

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"Drop." *Merriam-Webster.com Dictionary*, Merriam-Webster, https://www.merriam-webster.com/dictionary/drop. Accessed 30 Sep. 2025.

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Kids Definition

drop 1 of 2 noun

ˈdräp

1 **a :** the quantity of fluid that falls naturally in one rounded mass

b plural **:** a dose of medicine measured by drops

eye *drops*

c : a small quantity of drink

d : the smallest practical unit of liquid measure

2 **:** something (as a hanging ornament on jewelry or a round candy) shaped like a drop

3 **a :** the act or an instance of dropping **:** FALL

b : a decline in quantity or quality

a *drop* in water pressure

a *drop* in prices

c : a descent by parachute

d : a place where something (as mail or goods) is left to be picked up

4 **:** the distance through which something drops

5 **:** an unframed piece of cloth scenery in a theater

6 **:** ADVANTAGE sense 1

we've got the *drop* on them

drop 2 of 2 verb

dropped; dropping

dropped, dropping

1 : to fall or let fall in drops

2 a : to let fall : cause to fall
dropped the book

b : to reduce to a lower level or stage
dropped his speed

3 : SEND sense 1
drop me a line

4 : to stop doing, using, or considering
drop the subject
dropped everything and ran to the door
you can *drop* that idea

5 : to knock or shoot down

6 : to go lower
prices *dropped*

7 : to make a brief visit
drop in for a chat

8 : to pass into a less active state
drop off to sleep

9 : to move downward or with a current

10 : to leave (a letter standing for a speech sound) unsounded
drop the "g" in "running"

11 : to give birth to
the cow *dropped* her calf

12 informal : to be released to the public
her new album just *dropped*

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Medical Definition

drop 1 of 2 noun

ˈdräp

1 **a** : the quantity of fluid that falls in one spherical mass

b **drops** plural : a dose of medicine measured by drops

eye *drops* for dilating the pupil of the eye

2 : the smallest practical unit of liquid measure that varies in size according to the specific gravity and viscosity of the liquid and to the conditions under which it is formed

→ compare MINIM

drop 2 of 2 verb

dropped; dropping

intransitive verb

: to fall in drops

transitive verb

1 of an animal : to give birth to

lambs *dropped* in June

2 : to take (a drug) orally
drop acid

More from Merriam-Webster on *drop*

Nglish: Translation of *drop* for Spanish Speakers
Britannica.com: Encyclopedia article about *drop*

Last Updated: 30 Sep 2025 - Updated example sentences

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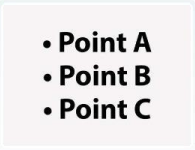
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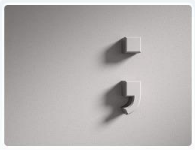
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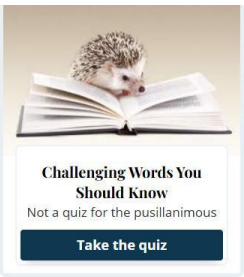
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Blossom
Pick the best words!
Play



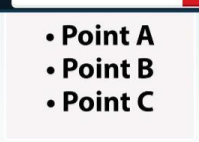
The Missing Letter
A daily crossword with a twist
Play



Challenging Words You Should Know
Not a quiz for the pusillanimous
Take the quiz



Is it 'autumn' or 'fall'?



Using Bullet Points (•)



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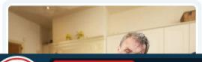
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A Guide to Using Semicolons

Popular in Wordplay

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desk noun

desk

Synonyms of *desk* ›

1 **a :** a table, frame, or case with a sloping or horizontal surface especially for writing and reading and often with drawers, compartments, and pigeonholes

b : a reading table or lectern from which a liturgical service is read

c : a table, counter, stand, or booth at which a person works

2 **a :** a division of an organization specializing in a particular phase of activity

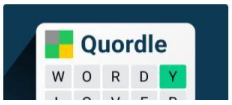
the Russian *desk* in the Department of State

b : a seating position according to rank in an orchestra

a first-*desk* violinist

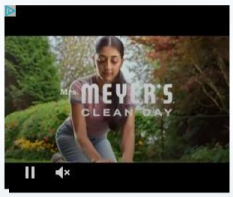
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Synonyms

office department agency bureau

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Examples of *desk* in a Sentence

an information ***desk*** at an airport

We will ask for directions to the restaurant at the ***front desk***.

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P L A Y S
D A I L Y
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Can you solve 4 words at once?
Play
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impetuous

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We went to the ***reception desk*** to check into our room.

Recent Examples on the Web

Examples are automatically compiled from online sources to show current usage. Opinions expressed in the examples do not represent those of Merriam-Webster or its editors. Send us feedback.

An unlit cigar from Red Sox principal owner John Henry lay on the ***desk*** in front of him.
– Gabrielle Starr, *Boston Herald*, 27 Sep. 2025

Kimmel pulled a copy out from behind his ***desk*** to show it to the audience.
– Lisa Respers France, *CNN Money*, 26 Sep. 2025

Are there crisp packets or orange peel littering the ***desk***?
– Katie Da Cunha Lewin september 26, *Literary Hub*, 26 Sep. 2025

Spanx's fall sale has up to 30 percent off select activewear along with essentials that seamlessly transition from ***desk*** to dinner, while Kate Spade Outlet is offering sitewide discounts as steep as 75 percent.
– Toni Sutton, *PEOPLE*, 26 Sep. 2025

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Etymology

Middle English *deske, dext* "reading desk, lectern," borrowed from Medieval Latin *descus, desca,* variant of *discus* "raised table, platform," going back to Latin, "discus, kind of plate, gong," borrowed from Greek *dískos* "discus," in Late Greek also "dish, round mirror, the sun's disk, gong" — more at DISCUS

NOTE: The *e* in the British Medieval Latin forms (and subsequent borrowing into Middle English) appears to show influence of the Romance outcome of *discus,* for which see the note at DISH entry 1. The sense "reading desk," presumably originating in monastic usage, is not limited to Britain—compare *discus* in *Mittellateinisches Wörterbuch,* which records the meaning in central Europe.

First Known Use

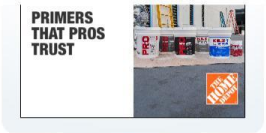
14th century, in the meaning defined at sense 1a

Time Traveler

The first known use of *desk* was in the 14th century

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Phrases Containing *desk*

cash desk	city desk	desk job
desk jockey	front desk	help desk
news desk	partners desk	reading desk
rolltop desk	writing desk	

Rhymes for *desk*

arabesque	picaresque	romanesque
statuesque	burlesque	grotesque
carnivalesque		

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desize **desk** deskbound

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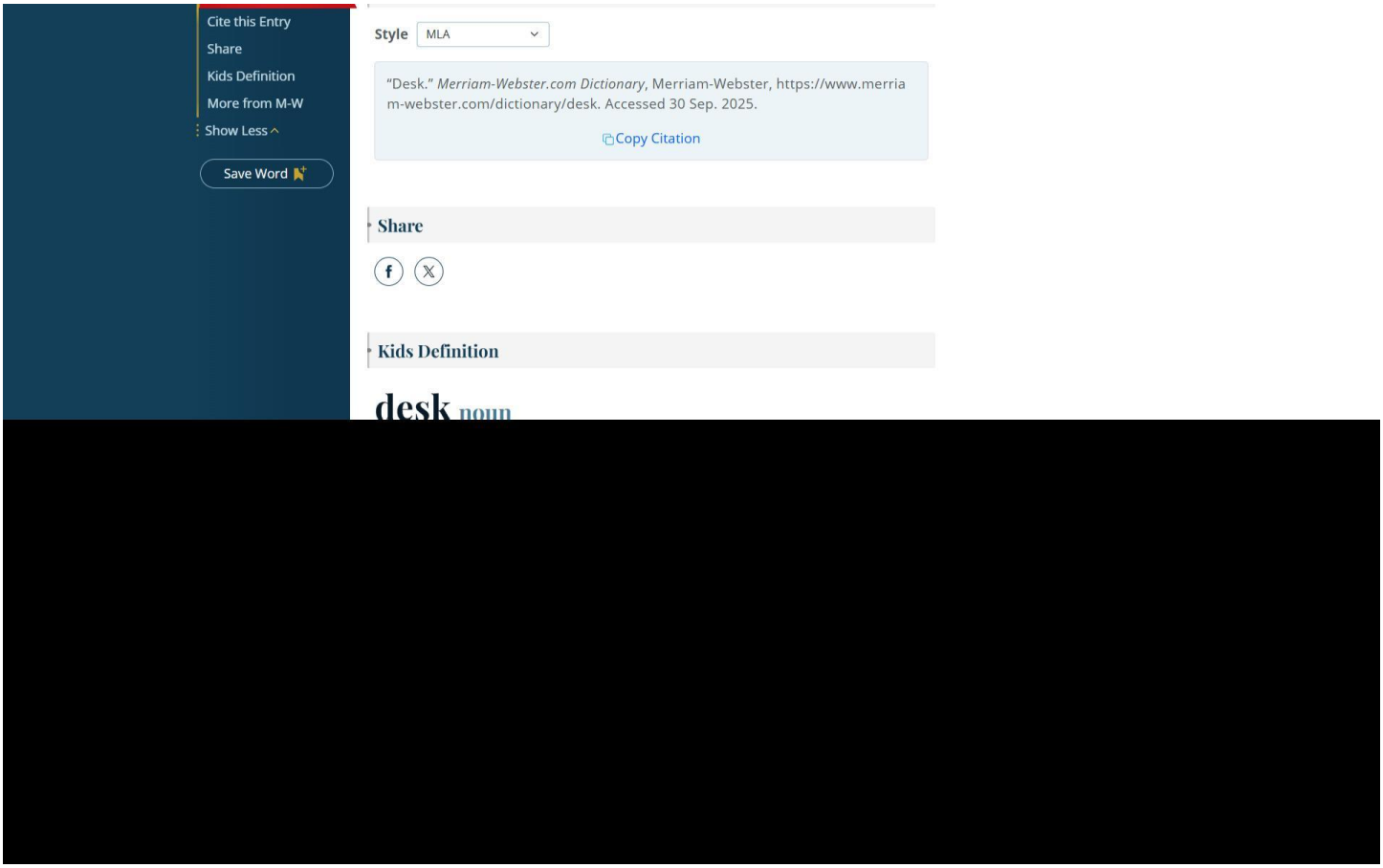
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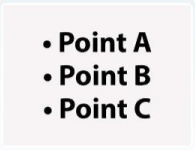
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USPTO OFFICIAL NOTICE

Office Action (Official Letter) has issued
on September 30, 2025 for
U.S. Trademark Application Serial No. 99174501

A USPTO examining attorney has reviewed your trademark application and issued an Office action. You must respond to this Office action to avoid your application abandoning. Follow the steps below.

(1) Read the Office action. This email is NOT the Office action.

(2) Respond to the Office action by the deadline using the Trademark Electronic Application System (TEAS). Your response, or extension request, must be received by the USPTO on or before 11:59 p.m. **Eastern Time** of the last day of the response deadline. Otherwise, your application will be abandoned. See the Office action itself regarding how to respond.

(3) Direct general questions about using USPTO electronic forms, the USPTO website, the application process, the status of your application, and whether there are outstanding deadlines to the Trademark Assistance Center (TAC).

After reading the Office action, address any question(s) regarding the specific content to the USPTO examining attorney identified in the Office action.

GENERAL GUIDANCE

- **Check the status of your application periodically** in the Trademark Status & Document Retrieval (TSDR) database to avoid missing critical deadlines.

- **Update your correspondence email address** to ensure you receive important USPTO notices about your application.

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